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Our ref: elc/ln67878/0011/kxw

28 August 2018

Barclays Bank plc
1 Churchill Place
London
E14 5HP

Dear Sirs

Our client: Nicola Johnson (formerly Nicola Takieddine)
Warwick House, 8 Addison Crescent, London W14 8JP (Title number: BGL25559)
Charge in favour of Barclays Bank PLC dated 2 February 2009

We act for Nicola Johnson (formerly Nicola Takieddine) and are instructed by her in relation to the proposed sale of Warwick House. There is a charge in your favour dated 2 February 2009 given by the registered proprietor, Warwick Estate Limited.

We have previously acted for our client in respect of her divorce proceedings from her former husband, Ziad Takieddine. Following an order of the High Court dated 16 September 2016, an order was made that the property be sold and that our client should have conduct of the sale. We attach a copy of that order for you. You will note the declarations about beneficial ownership and how the proceeds are to be distributed pursuant to paragraph 7 of that order. You will also note that our client has a number of charging orders in her favour. The charging orders are both pursuant to this order, previous orders and a further order of 27 November 2017. We are advised that, due to the likely sale price of the property (it is currently being marketed for £14.95m), the entire net proceeds of sale will be paid to our client to satisfy her half share in the property and to part satisfy the charging orders.

The property is currently being actively marketed by Savills and there has been an offer. Our client is considering her response to that offer.

A relevant factor for our client is the amount you would seek to discharge the charge in your favour. We have seen a copy of the letter dated 16 July 2018 sent by Charles Russell Speechlys to Dena Brumpton, CEO, Barclays Wealth & Investment UK (which was acknowledged by Ronan Prendergast, to whom this letter is copied). Notwithstanding issues raised in that letter and without prejudice to them, please can you provide us with a redemption statement in order that our client can consider all relevant issues leading up to the sale.

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e-mail: emma.copestake@withersworldwide.com

Withers LLP is a limited liability partnership registered in England and Wales with registered number OC301149 and is authorised and regulated by the Solicitors Regulation Authority with registered number 352314. A full list of members' names and professional qualifications may be inspected at our registered office, 20 Old Bailey, London EC4M 7AN.

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Los Angeles Rancho Santa Fe San Diego

We look forward to hearing from you as soon as possible.

Yours faithfully

Withers LLP

cc ronan.prendergast@barclays.com

Case no: FD14F00385

IN THE HIGH COURT OF JUSTICE
FAMILY DIVISION

Before Honourable Mr Justice Moylan sitting at the Royal Courts of Justice, Strand, London WC2A 2LL

The Matrimonial and Family Proceedings Act 1984

The Maintenance Regulation EC No.4/2009

The Charging Orders Act 1979

The Marriage of Nicola Maxine Johnson (formerly Takieddine) and Ziad Mounir Takieddine

After hearing Charles Hale QC and Henry Clayton, counsel for the applicant, and the respondent in person (by video link), the second respondent (having had notice of the hearing) not attending nor being represented.

And upon the court having given judgment on 2 June 2016 and having adjourned the matter on the 4 August to this hearing.

ORDER MADE BY MR JUSTICE MOYLAN, IN PRIVATE, ON 16 SEPTEMBER 2016

THE PARTIES

1. The applicant is Nicola Maxine Johnson (formerly Takieddine)
   The respondent is Ziad Mounir Takieddine
   The second respondent is Warwick Estates Limited

DEFINITIONS

2. The following terms are defined as set out below:
   a. "Warwick House": Warwick House, 8 Addison Crescent, London W14, registered under title number BGL25559;

b. "The Occupation Order proceedings": The applicant's application for an occupation order in respect of Warwick House under case number FD10F00562;

c. "The Breach of Confidence proceedings": The respondent's claim under case number HC10C02686, including the default costs certificate against the respondent dated 18 July 2012 in the sum of £408,796.75;

d. "The Freezing Order proceedings": The application for the freezing order dated 27 September 2016 (in which costs were summarily assessed at £28,561.03;

e. "The Counterclaim": The civil proceedings which include the second respondent's possession claim in respect of Warwick House and the applicant's counterclaim, under case number 0WL01169, including the default costs certificate against the second respondent dated 4 December 2012 in the sum of £224,427.16;

f. "The Previous Proceedings": the Occupation Order proceedings, the Breach of Confidence proceedings, the Freezing Order proceedings and the Counterclaim;

g. "Prestation Compensatoire": the award of €3million against the respondent in favour of the applicant by the French matrimonial court in lieu of the applicant's claims to ongoing spousal maintenance in France;

h. "The Interim Charging Order": the order dated 30 July 2015 charging Warwick House with the Prestation Compensatoire, the interest thereon and any associated costs, and the costs of this application.

RECITALS

3. The second respondent is controlled by the respondent, it was the respondent who engineered the false case advanced by the second respondent in the Previous Proceedings, and at all times in the Previous Proceedings the second respondent was acting on behalf of the respondent as his agent and was under his control.

DECLARATION

4. The court finds and declares that:

   a. the respondent is the direct beneficial owner of Warwick House and its contents;

   b. the second respondent holds the legal title in Warwick House as nominee for and on trust for the benefit of the respondent.

IT IS ORDERED THAT:

5. The respondent's application dated 15 April 2015 (to set aside the order of HHJ Heaton QC dated 20 October 2014) is dismissed.

Charging order

6. The Interim Charging Order dated 30 July 2015 shall continue until further order. The court will consider whether the Charging Order should be made final (and in what sum) upon the sale of Warwick House or at a further hearing if before the sale. For the avoidance of doubt, this issue is reserved to Mr Justice Moylan if available (to be listed upon application in writing to the Judge's clerk).

Sale of property order

7. Warwick House shall be placed on the open market for sale and the following consequential provisions shall apply:
    a. The property shall be placed on the open market for sale at a price to be agreed between the parties in writing within 3 weeks (by 4pm on 7 October 2016) or in default as determined by the court upon application in writing (reserved to Mr Justice Moylan if available);
    b. The property shall be sold for a price to be agreed between the parties in writing or in default as determined by the court upon application (reserved to Mr Justice Moylan if available);
    c. The applicant shall have sole conduct of the sale save as otherwise provided for in this Order;
    d. Such solicitors as may be nominated by the applicant shall have conduct of the conveyancing work relating to the sale;
    e. Such estate agents, as agreed between the parties in writing by 4pm on 7 October 2016 or in default as determined by the court on application in writing (reserved to Mr Justice Moylan if available), shall offer the property for sale;
    f. The proceeds of sale shall be applied in the following order of priority:
        i. To discharge any sums payable under the mortgage in favour of Barclays;

ii. In payment of the solicitors' conveyancing costs and disbursements in connection with the sale;

iii. In payment of the estate agents' charges;

iv. In payment of half the balance to the applicant and the remaining half should be applied in the following order as follows:

1. In payment to the applicant of €7,500 (which represents the respondent's share of the single joint expert Alain Devers' fees);
2. In payment to the applicant of £3,205.47 (which represents the respondent's share of translating the above report);
3. In payment to the applicant of the outstanding education costs of the parties' youngest child Nadim, aka Mounir, which were ordered by the French court (currently standing at £16,434 for this academic year);
4. The respondent's share of the cost of preparing the inventory below (in the event that it is unpaid at date of sale);
5. In payment to the applicant's solicitors Withers LLP of such sums owed by the respondent and the second respondent pursuant to costs orders made against one or both of them in favour of the applicant, including the costs of the Previous Proceedings (including the costs of the Counterclaim previously ordered against the second respondent which shall be recoverable against the respondent as to principal and interest of £279,010.50 as at 13 September 2016 and accruing at a daily rate of £43.51) along with any interest on existing charging orders and costs orders;
6. In payment to the applicant's solicitors Withers LLP of the payment on account of the costs order made within these proceedings (below), namely £400,000;
7. The remaining amount shall be held by the nominated conveyancing solicitors until further order of the court determining what further proportion shall be paid to each party following determination of the remaining issues, namely:
    a. The difference between the total costs claimed by the applicant in these proceedings and the payment on account (above);

b. The costs claimed by the applicant in connection with her application dated 18 August 2016 to join the respondent to the Counterclaim for costs purposes only, namely £5,208.80

c. The costs claimed by the applicant within the Occupation Order proceedings which have not been subject to summary assessment, namely £107,773.39;

d. €3,050,000 in relation to the *prestation compensatoire* and child maintenance as ordered by the French courts;

e. The sum which the applicant claims by way of interest on the sum in (d) above, namely €846,505.94 at the date of this order, further accruing at a daily rate of €668.49.

g. Upon an offer for the sale of the property being accepted by the applicant, the respondent shall within 7 days of a request by email to him (and to the director of the second respondent Mr Bouchaaya), procure the signing of the TR1 form (together with any and all necessary documents to effect the sale) by the second respondent (and the respondent as necessary) and deliver the signed TR1 together with any other necessary documents to the applicant's solicitors by no later than 10 days following the initial email request. In default of the respondent procuring the signing of the TR1 and all and any necessary other documents to effect the sale, those documents shall be signed by Mr Justice Moylan or some other proper officer of the court.

Transfer of property

8. The parties' claims as to the transfer of the contents of Warwick House are hereby adjourned until further order, reserved to Mr Justice Moylan if available (to be heard alongside the final charging order application if possible).

9. The parties shall jointly instruct an appropriate expert to file and serve an inventory of the contents of Warwick House and the following consequential provisions shall apply:

a. The identity of the expert and the letter of instruction shall be agreed in writing within 3 weeks, or in default determined by the court on application in writing (reserved to Mr Justice Moylan if available);

b. The inventory shall be filed and served as soon as practicable;

c. The costs shall be shared equally between the parties.

Service

10. Permission to serve this order by email on the respondent which service shall be deemed good service.

Costs

11. The respondent shall pay the applicant's costs of and incidental to these proceedings (including the application for the Charging Order and the costs of implementation of this order), on the standard basis, to be subject to a detailed assessment forthwith if not agreed.

12. The respondent shall make a payment on account of the applicant's overall costs in these proceedings in the sum of £400,000 upon completion of sale of Warwick House (as provided above).

13. The applicant's application for respondent to pay the costs of the Occupation Order proceedings on an indemnity basis subject to detailed assessment, is adjourned until further order (to be heard alongside the final charging order application if possible).

Permission to appeal

14. The respondent's oral application (made today) for permission to appeal is refused, the respondent being informed by the court that, if he wished to appeal, he had to make his application to the Court of Appeal within 21 days of 16th September 2016.

Further hearings

15. For the avoidance of doubt, all further first instance hearings are reserved to Mr Justice Moylan if available.

Dated 16th September 2016

pw

FD14F00385

IN THE HIGH COURT OF JUSTICE
FAMILY DIVISION

BEFORE: MRS JUSTICE PARKER SITTING IN PRIVATE

The Matrimonial and Family Proceedings Act 1984

The Maintenance Regulation EC No.4/2009

The Charging Orders Act 1979

The marriage of Nicola Maxine Johnson (formerly Takieddine) and Ziad Mounir Takieddine

After hearing counsel for the applicant, namely Charles Hale QC and Henry Clayton, and the respondent not attending nor being represented despite having notice of the hearing.

The parties

1. The applicant is Nicola Maxine Johnson (formerly Takieddine)

   The first respondent is Ziad Mounir Takieddine
   The second respondent is Warwick Estates Limited

Definitions

2. 'Warwick House' shall mean Warwick House, 8 Addison Crescent, London W14 8JP registered under title number BGL25559.

3. "The Occupation Order proceedings": The applicant's application for an occupation order in respect of Warwick House under case number FD10F00562

4. "The Counterclaim": The civil proceedings which include the second respondent's possession claim in respect of Warwick House and the applicant's counterclaim, under case number 0WL01169.

5. "Prestation Compensatoire": the award of €3million against the respondent in favour of the applicant by the French matrimonial court in lieu of the applicant's claims to ongoing spousal maintenance in France.

6. "The Interim Charging Order": the order dated 30 July 2015 charging Warwick House with the Prestation Compensatoire, the interest thereon and any associated costs, and the costs of this application.

Recitals

7. Upon being shown email correspondence, the court is satisfied that the first respondent was given proper notice of this hearing by the applicant's solicitors in accordance with the order of Mr Justice Holman dated 14 September 2017. Before proceeding with this hearing the following enquiries were made as to the first respondent's participation:

   a. The court checked whether the first respondent had attempted to contact the Clerk of the Rules to participate in the hearing by video link or otherwise. The court was informed that there had been no contact from the respondent with the Clerk of the Rules or the court at all from the respondent;

   b. The applicant's solicitor, Mr Copson, telephoned the first respondent at approximately 11am and left a voice message.

8. The court noted that the first respondent did not participate in the last hearing in this matter before Mr Justice Moylan (as he then was) on 2 March 2017 when the court found that he had been given proper notice of that hearing.

9. For the avoidance of doubt, the sums owing under the various costs orders made against the first respondent in favour of the applicant in these and related proceedings prior to this order stood at £1,643,224 on 13 November 2017 (including interest).This includes the default costs certificate dated 12 January 2017 in the sum of £632,236.10 within these Part III proceedings under matter no. FD14F00385 which shall be deducted from the remaining half of the net proceeds of Warwick House (the first respondent's notional share) along with the other costs orders so deducted at sub- paragraph 7(f)(iv)(5) of the final order of Moylan J dated 16 September 2016.

10. In relation to the chattels at Warwick House, the court has made an order below transferring these to the applicant. For the avoidance of doubt, in relation to any chattels she has sold, she was entitled to do so.

11. The court has made an order for the sale of Warwick House. For the avoidance of doubt, the first respondent is not entitled to occupation rent.

12. The court has permitted the applicant to enforce, against the first respondent's interest in Warwick House, the Prestation Compensatoire and arrears of French child maintenance under Council Regulation EC No.4/2009 (The Maintenance Regulation). The court has taken the debt at its lowest point according to the French judgment dated 18 November 2015, namely €2,955,446 on 30 September 2013. The applicant remains entitled to seek enforcement in France in respect of:

a. Any arrears of child maintenance after 30 September 2013, plus interest;
b. Any balance of the Prestation Compensatoire that she does not recover from the sale proceeds of Warwick House (which may occur if the sale proceeds are insufficient to cover all deductions ordered by the court), plus interest.

IT IS ORDERED THAT:

Enforcement under the Maintenance Regulation

13. The award of the Prestation Compensatoire in favour of the applicant in the sum of €3million and interest of €1,029,630.06 is hereby registered and declared enforceable in accordance with Council Regulation EC No.4/2009 (The Maintenance Regulation). The equivalent sterling figure of £3,546,717.69 shall be deducted from the remaining half of the net proceeds of Warwick House (the first respondent's notional share) after the other items orders so deducted at sub-paragraph 7(f)(iv)(1)-(6) of the final order of Moylan J dated 16 September 2016 (and interest shall be applied at a daily rate of £777.36 [the English judgment debt rate] from 27 November 2017 to date of payment).

Final charging order

14. The interim charging order shall be made into a final charging order, to include the above sums declared enforceable pursuant to the Maintenance Regulation (£3,546,717.69 including interest up to the date of this order).

Tarple Investments

15. The first respondent shall pay to the applicant £48,508.50 (with interest at 8% per annum calculated daily from 27 November 2017) to be deducted from the remaining half of the net proceeds of Warwick House (the first respondent's notional share) along with sub-paragraph 7(f)(iv)(3) of the final order of Moylan J dated 16 September 2016 (this further deduction relates to the claim by Tarple Investments Limited against both parties).

Chattels

16. The first respondent shall forthwith transfer to the applicant all of his legal interest in the chattels stored and situate at Warwick House. The beneficial ownership shall stand transferred upon the making of this order.

Costs orders

17. The first respondent shall pay:

    a. For the avoidance of doubt, pursuant to the Judgment of Moylan J dated 16 September 2017 paragraph [79], the applicant's costs of her application dated 18 August 2016 to join the first respondent to the Counterclaim for costs purposes only, to be subject to a detailed assessment;

    b. the applicant's costs of and incidental to the Occupation Order proceedings (save in respect of those hearings in relation to which costs have already been determined) on the indemnity basis, summarily assessed in the sum of £69,670.26 and payable by 4pm on 11 December 2017 (with interest at 8% per annum calculated daily);

    c. the applicant's costs of and incidental to this hearing on the indemnity basis, summarily assessed at £30,224.40 and payable by 4pm on 11 December 2017 (with interest at 8% per annum calculated daily);

All of which shall be deducted from the remaining half of the net proceeds of Warwick House (the first respondent's notional share) along with the other costs orders so deducted at sub-paragraph 7(f)(iv)(5) of the final order of Moylan J dated 16 September 2016.

Dated 27 November 2017

DP